Harris County District Court

Cause No. 2024-CV-0027

Jennifer Watts, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-8-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

As and for its affirmative defenses, Defendant states the following. First, Plaintiff's own negligence caused or contributed to the occurrence, in that Plaintiff failed to keep a proper lookout, failed to yield the right-of-way, and failed to exercise ordinary care while attempting to turn left. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributable to Plaintiff. Second, Defendant invokes the proportionate responsibility provisions of Chapter 33, and asserts that Plaintiff may not recover if Plaintiff's percentage of responsibility is greater than fifty percent. Third, Defendant assetrs that any injuries or damages claimed were caused by a pre-existing condition or by a subsequent event unrelated to the occurrence, and Defendant reserves the right to seek a credit or offset for any settlement with other responsible parties.